

NEWS

UC Berkeley's Promised Supportive Housing in People's Park Still Doesn't Have a Developer



By Adhiti Bandlamudi Jan 10 Save Article



Construction crews work in People's Park in Berkeley on Jan. 4, 2024. (Martin do Nascimento/KQED)

As part of its plans to redevelop People's Park, UC Berkeley has long vowed to build about 100 units of housing for low-income and unhoused people alongside a thousand units for students.

The developer for the low-income housing, however, exited the project last spring, and the university has not selected a new one to take its place.

Resources for Community Development (RCD) left the project just months after **an appellate court** ruled UC Berkeley couldn't move forward with construction until it evaluated other possible development sites and assessed potential noise impacts to students and other neighbors as part of its environmental review.

In a statement, RCD spokesperson Lauren Lyon said the company reallocated its "limited resources to other developments," citing delays caused by the appellate court decision. She added that the ruling "sets a dangerous precedent for housing development, especially for the creation of new affordable housing which is so desperately needed."

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—Dan Mogulof, assistant vice chancellor, UC Berkeley

"It's clear that the legal issues have to be addressed, then the developers don't have to worry about delays," said Dan Mogulof, the assistant vice chancellor of the university. "As soon as the legal issues are settled, we'll work to find a developer."

The appellate court decision stems from a 2021 lawsuit filed by neighbors and activists who were concerned the students and residents in the new housing developments would negatively impact the neighborhood. The university has appealed the case to the state supreme court and is still awaiting a hearing.

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The decision could be affected by legislation signed by Gov. Gavin Newsom in September. AB 1307, written specifically to help UC Berkeley in its quest to build at People's Park, states that noise generated by a building's future residents doesn't qualify as a significant environmental impact and eliminates the need for public universities to consider alternative sites for certain projects.

UC Berkeley is steadfast in its plan to build the 1,100-unit student housing and 125-unit supportive housing project. The university plans to develop the student housing itself. As for the supportive housing, it plans to offer the land, worth millions of dollars, to a third-party developer at no cost.

"The project is not just about student housing," Mogulof said. "Supportive housing is an inseparable part of the project. We can find a developer to handle that part of the project."

UC Berkeley currently provides housing to only 22% of its more than 40,000 undergraduate and graduate students, the smallest percentage out of all schools in the UC system. In 2017, the university launched a Student Housing Initiative aiming to add 9,000 student beds. The project on People's Park is part of that plan.

The plan to build housing at People's Park has support from local city leaders. In December 2021, the City of Berkeley allocated \$14 million for the project as part of a package of \$67 million that included six other affordable housing developments across the city.

"The proposed student housing is urgently needed to alleviate our housing crisis and the permanent supportive housing at People's Park will be the most significant homeless services and affordable housing project in the history of the neighborhood," said former councilmember and mayoral candidate Rigel Robinson, who represents the district.

On Tuesday, Robinson resigned from his seat on the city council and quit the mayoral race after facing harassment, stalking and threats — often from those opposing his position on the park's development.

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People demonstrate outside of People's Park as law enforcement prevent them from entering the premises in Berkeley on Jan. 4, 2024. (Martin do Nascimento/KQED)

"Generally, I have accepted this as simply being part of the job," he said in an [op-ed published in Berkeleyside](#). "But when these behaviors affect my loved ones, I have to draw the line. It's time for me to prioritize my well-being and my family."

UC Berkeley offered housing, transportation and social services to unhoused residents of the park, according to Mogulof. Still, the decision to clear People's Park before the court decided on the case seemed sinister to activists seeking to protect the park.

Lisa Teague, an organizer with the People's Park Committee said they felt the university was trying to "fake it until they make it" by removing encampments and makeshift tree houses and hoping the state's supreme court rules in their favor.

"[The university's] desire to build on People's Park is stronger than their desire to actually put up student housing," Teague said. "Any other site would have [been built] with relatively little controversy."

Now part of the National Register of Historic Places, People's Park was the site of anti-war and environmental justice demonstrations in the 1960s and 1970s and has long been a place for homeless residents to camp and find services. Some Berkeley residents worry that history will be erased, despite the university's promise to create permanent commemorations onsite.

Harvey Smith, the president of the People's Park Historic District Advocacy Group, said the site is an international destination.

"[Our group is] not privileged NIMBY neighbors, we're people all over Berkeley and California that support People's Park," he said. "The issues that the park represents, whether it's environmental, antiwar or free speech — so much of that is relevant right now to what we're dealing with today."

While the university and those hoping to protect the park wait for the court's decision, the large shipping containers surrounding the site will remain in place.

"They will stay there until construction is finished," said Mogulof, which could continue for the next several years.

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